

Court No. - 21

Case :- WRIT - C No. - 5011 of 2024

Petitioner :- Yamuna Singh Yadav @ Jamuna Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Ashish Dwivedi, Dileep Kumar Shukla

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

As prayed, put up as fresh on 05.03.2024.

Order Date :- 21.2.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Shri Udit Chandra, counsel for the Electricity Department admits that the procedure prescribed has not been followed in issuing the final assessment order.

2. Put up tomorrow as fresh along with record of Writ-C No. 3458 of 2024.

Order Date :- 5.3.2024

Mukesh Kr.

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, J.)

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Hon'ble Kshitij Shailendra, J.

Connect with Writ-C No.3458 of 2024 and list on 01.04.2024 as a fresh case along with said writ petition.

Order Date :- 6.3.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the recovery certificate dated 31.01.2024 issued by respondent no.4 against him for recovery of electricity dues.

2. A short counter affidavit has been filed by the concerned Executive Engineer stating that the impugned final assessment order which was not happily worded has been withdrawn on 02.03.2024.

3. Sri Udit Chandra, learned counsel for the respondent-Electricity Department, submits that since the impugned recovery is being withdrawn on account of technical reasons, therefore, the respondents reserve their right to pass a fresh order.

4. Accordingly, the petition is **disposed of** as infructuous but with liberty to the respondent-Electricity Department to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 1.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)